



File No.: EXP202308138

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by CDC FRANQUICIADORA INMOBILIARIA, S.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated November 27, 2023, and based on the following

FACTS

FIRST: On November 27, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202308138, in which the claim for the exercise of rights made by A.A.A. (hereinafter the claimant) against the appellant was upheld.

SECOND: The resolution now being appealed was duly notified to the appellant on December 12, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a recourse for reconsideration to this Spanish Agency for Data Protection, in which it reproduces the allegations made during the procedure from which this recourse arises:

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

Regarding the statements made by the appellant, it should be noted that this Agency took them into account in the Resolution of the rights procedure from which this recourse arises, proceeding to uphold the request of the appellant as it was not evidenced that the appellant had received a response from the now-recurrent party. The reason that led to the claim being upheld is that those detailed responses/explanations should have been directed to the claimant.

In the resolution, we state that: "The party being claimed has duly denied the access request, explaining and substantiating the reasons; however, during the processing of the present procedure, the claimed entity does not substantiate having attended to the request made by the claimant, sending the required response to their request.

Since a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the request for the exercise of rights is not attached, it is appropriate to uphold the claim that originated the present procedure."

The regulations in this regard are very clear; in response to a request, there must always be a reply, and these rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that those responsible must issue, even in cases where there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

III

Conclusion

Examined the recourse for reconsideration presented by the appellant, it does not provide new facts or legal arguments that allow for a reconsideration of the validity of the contested resolution, so it is

appropriate to agree to its dismissal.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST:

TO DISMISS the recourse for reconsideration filed by CDC FRANQUICIADORA INMOBILIARIA, S.A. against the Resolution of this Spanish Agency for Data Protection issued on November 27, 2023, in file EXP202308138.

SECOND: TO NOTIFY this resolution to CDC FRANQUICIADORA INMOBILIARIA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, a contentious-administrative appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of the aforementioned legal text.

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Director of the Spanish Agency for Data Protection

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